

Request for Assessment of Audit Risk To Elections Assistance Commission, Office of Inspector General From Michigan Fair Elections

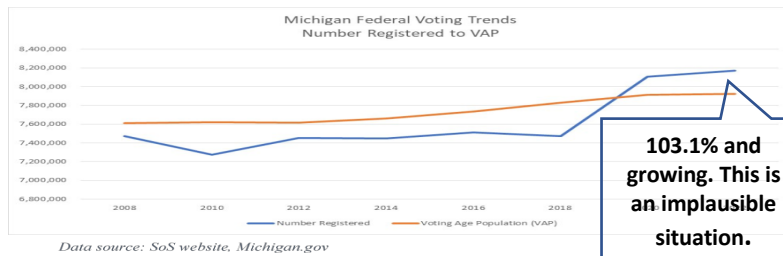


Issues:

- Many of Michigan's election practices and procedures are not compliant with federal election laws.
- The number of votes continues to outnumber the number of recorded voters over the past two elections, and the QVF output has puzzling changes in voting history.
- Michigan's Qualified Voter File (QVF) has more registrations (103.1%) than the state's voting age population. (See chart.)
- Membership in the Electronic Registration Information Center (ERIC) and noncompliant guidance from the state's top election official, the Secretary of State are largely responsible for Michigan's elections issues.
- The QVF has multiple voter identifiers (IDs) in direct contravention to HAVA requirements.
- The result is a potential form of Voter Suppression in which cast false ballots could cancel the votes of legitimate voters.
- Recent events and revelations indicate the potential for fraud is real and present.
- Recent changes to Michigan's Constitution and state elections laws are contrary to HAVA, the Driver's Privacy Protection Act, the National Voting Rights Act, and other federal voting rights laws.

Supporting Information:

The QVF shows more voter registrations than the state's Voting Age Population (VAP). In 2019, Secretary of State Jocelyn Benson initiated practices that contributed to these excess registrations.



Voter histories keep changing in the QVF

Difference between Official Vote Count and Official QVF Recorded Voters			
QVF Dates	11/3/2020 Official Vote Total per SOS	Total QVF votes	Missing VoterIDs Votes
12/1/2020	5,579,317	5,475,180	104,137
1/1/2021	5,579,317	5,476,095	103,222
4/1/2021	5,579,317	5,511,303	68,014
10/1/2023	5,579,317	5,321,429	257,888
11/1/2023	5,579,317	5,314,009	265,308
12/1/2023	5,579,317	5,307,751	271,566

QVF never had a total equaling the 2020 reported results

Solutions: Michigan is undergoing an audit by the U.S. Elections Assistance Commission (EAC) and its Office of Inspector General (OIG) on the state's spending of \$57.6 million of HAVA funding since 2015. This audit should examine key processes and procedures described in MFE's report in order to:

- Bring Michigan's elections administration into compliance with federal voting rights laws.
 - Ensure that the state develops and implements a quick, actionable, and time-bound plan to remedy areas of noncompliance.
 - Ensure that milestones are clearly defined and met.
- Complete an examination of the QVF program and its output.
 - Any deficiencies should require the development and implementation of an actionable, time-bound remediation plan.
- Develop an opinion and recommendations at to the state's recently passed statutes.

MICHIGAN is noncompliant with Title III and Section 906 concerning federal voting rights laws. This noncompliance raises the risk of voter suppression. Michigan processes and procedures should be brought into compliance and violations of law should be enjoined. Until then all HAVA funds should be suspended and clawed back until actionable plans are created and implemented to the EAC and OIG's satisfaction.

For more information and detail email: contact@mifairelections.com, (517) 299-8002.